

Defendant contends that he had no notice of this lawsuit until default was entered. (Declaration of Peter De la Torre, ¶ 9.) He contends that he did not attempt to evade service. (*Id.* at ¶ 12.) He briefly discusses the attempts set forth in the proof of service made by the process server to serve him and asserts that he believes that the process server was attempting to serve the wrong suite address. (*Id.* at ¶¶ 5 and 7.) He states that no one at his business address matches the description of the individual served via substitution of service. (*Id.* at ¶ 7(e).) This evidence appears to indicate a lack of knowledge and service by Plaintiff. This evidence also appears nearly identical to the evidence provided by Defendant in support of the motion to set aside entry of default. Based on the minute order for the motion to set aside default, it appears that Judge Firetag did not find the evidence provided sufficient or convincing.

In Plaintiff's supplemental brief, it points to the evidence submitted in opposition to Defendant's second motion to set aside default. The Court takes judicial notice of these documents. (Plaintiff's Opposition to Defendant's Motion to Set Aside Default, filed 6/25/24.) Plaintiff argues that its process server attempted to serve Defendant eleven times. (Declaration of Micheal G. York, Exhibit A.) It asserts that Defendant attempted to evade service. It points to notations by the process server in its declaration of due diligence that when it attempted to serve Defendant, vehicles were located outside Defendant's office location and no one answered. (*Id.*) The process server also indicates that on one occasion people were clearly inside the building, but no one answered the door. (*Id.*) It also asserts that substitution of service was proper because the process server indicates that Defendant's office assistant was served. (*Id.*) It should be noted; however, Exhibit A does not appear to be properly authenticated. Counsel does not appear to lay proper foundation to authenticate the documents attached. As no objection is made and the Court agrees with Judge Firetag's assessment that Defendant's declaration is not believable or sufficient, on balance it appears there is a lack of proper service.

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CASE #	CASE NAME	HEARING NAME
CVRI2205254	SILL VS LENDING BEE, INC	MOTION FOR SUMMARY JUDGMENT ON 2ND AMENDED COMPLAINT

Tentative Ruling: PROOF OF SERVICE: Proper

GRANT the motion for summary judgment of the 1st, 3rd – 7th, and 11th causes of action.

No opposition and separate statement filed by Responding Party.